

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kimberly Eldridge	Team: Team # 3	CCRB Case #: 201000914	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/20/2010 6:25 PM	Location of Incident: 154 South Avenue; 120th Precinct	Precinct: 120	18 Mo. SOL 7/20/2011	EO SOL 7/20/2011	
Date/Time CV Reported Wed, 01/20/2010 10:21 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 01/20/2010 10:21 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Frank Aliffi	13992	939856	120 PCT
3. An officer			
4. POM James Jackson	03282	940292	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Frank Muirhead	20981	945260	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Off. Language: At 154 South Avenue in Staten Island and at the 120th Precinct, an officer made remarks to § 87(2)(b) § 87(2)(b), § 87(2)(b), and § 87(2)(b) based upon race.	
B. POM Frank Aliffi	Force: At 154 South Avenue in Staten Island, Officer Frank Aliffi used physical force against § 87(2)(b)	
C. An officer	Force: At 154 South Avenue in Staten Island, an officer used a chokehold against § 87(2)(b)	
D. Officers	Force: At 154 South Avenue in Staten Island, officers used physical force against § 87(2)(b) and § 87(2)(b)	
E. POM James Jackson	Force: At 154 South Avenue in Staten Island, Officer James Jackson used pepper spray against § 87(2)(b)	
F. Officers	Force: At the 120th Precinct, officers used physical force against § 87(2)(b)	
G. Officers	Abuse: At the 120th Precinct, officers did not obtain medical treatment for § 87(2)(b)	

Case Summary

On January 20, 2010, § 87(2)(b) filed this complaint with the CCRB on behalf of her husband, § 87(2)(b) and her step-son, § 87(2)(b) via phone. On January 25, 2010, § 87(2)(b) biological mother, who did not witness this incident, filed this same complaint via phone with IAB and it was forwarded to the CCRB on January 27, 2010 under log number 10-04526. On January 21, 2010, § 87(2)(b) filed this complaint with IAB. On January 26, 2010, IAB forwarded § 87(2)(b) complaint to the CCRB under log number 10-03578. On January 22, 2010, § 87(2)(b) who did not witness this incident, filed this complaint on behalf of her son, § 87(2)(b) and his friend, § 87(2)(b). On January 26, 2010, § 87(2)(b) filed this complaint in-person at the 120th Precinct.

At approximately 8:25PM on January 20, 2010, § 87(2)(b), § 87(2)(b), and § 87(2)(b) were in the vicinity of 154 South Avenue in Staten Island when a marked police vehicle drove past them and made a u-turn. Officer Frank Muirhead and Officer Frank Aliffi, both of the 120th Precinct, were inside of the vehicle. One of the officers, none of the civilians knew which one, allegedly stated to them, “What’s up, cock sucking niggers? Why are your hands in your pockets? You got weed?” (Allegation A). Officers Muirhead and Aliffi then exited their vehicle and stopped § 87(2)(b), § 87(2)(b), and § 87(2)(b). The officers allegedly searched § 87(2)(b)’s pockets. Officer Aliffi allegedly searched § 87(2)(b). When § 87(2)(b) offered his identification to Officer Aliffi, Officer Aliffi allegedly struck § 87(2)(b) several times while yelling unspecified racial slurs (Allegation B). One of the officers, the civilians did not specify which one, allegedly placed § 87(2)(b) into a chokehold (Allegation C). § 87(2)(b) and § 87(2)(b) were able to get away from the officers and all three males ran from the scene.

At least fifteen uniformed officers from multiple commands arrived at the location to help apprehend § 87(2)(b), § 87(2)(b), and § 87(2)(b). § 87(2)(b) was arrested in front of 154 South Avenue. As § 87(2)(b) was being arrested, Officer Aliffi and other unidentified officers allegedly “beat” him before and after he was handcuffed (encompassed in allegation B; Allegation D). § 87(2)(b) arrived at the scene and asked the officers what was going on, at that time, Officer James Jackson of the 120th Precinct allegedly pepper sprayed § 87(2)(b) (Allegation E). The officers then pushed § 87(2)(b) to the ground and arrested him (encompassed in allegation D). A crowd formed at the location. § 87(2)(b) alleged that unidentified officers cursed at the unidentified members of the crowd, but did not specify what the officers stated. § 87(2)(b) noted that he did not obtain any of the officers’ names or shield numbers.

§ 87(2)(b) accompanied § 87(2)(b) to the 120th Precinct when he turned himself in. § 87(2)(b) was handcuffed and taken upstairs to the holding cell area. As officers were escorting § 87(2)(b) up the stairs, they allegedly kicked, stomped, and struck him about the body (Allegation F). The officers also allegedly struck his head against the wall, pulled out his hair (he wears his hair in braids), and threw him down the stairs (encompassed in allegation F). § 87(2)(b) allegedly heard § 87(2)(b) yelling, “Help me! Help me!” and asking the officers for medical treatment, which they allegedly refused to provide (Allegation G). Once inside of the holding cell, an unidentified officer allegedly stated to § 87(2)(b) “I would break your nose, but the cameras are there.”

Once § 87(2)(b) was at the 120th Precinct, he was allegedly interrogated by three unidentified males in suits. One of the three males allegedly stated to § 87(2)(b) “White people got the name crackers because they used to whip lazy slave niggers” (encompassed in Allegation A).

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) were all charged § 87(2)(a) 160.50
§ 87(2)(b) was charged § 87(2)(a) 160.50
§ 87(2)(b)

§ 87(2)(g)

On January 27, 2010, the investigator spoke with § 87(2)(b), § 87(2)(b), and § 87(2)(b). All three confirmed their contact information and scheduled interviews for February 2, 2010. All three, however, missed their scheduled appointments without calling to cancel or reschedule. The investigator sent each of them a missed appointment letter, and called them on February 4, 2010, March 8, 2010, and January 7, 2011. The investigator left a message on February 4, 2010 and on March 8, 2010, the investigator spoke with § 87(2)(b) at which time he scheduled a second appointment for March 16, 2010 and took a message which he stated he would forward to § 87(2)(b) and § 87(2)(b). § 87(2)(b) missed his second scheduled appointment without calling to cancel or reschedule. The investigator sent § 87(2)(b) and § 87(2)(b) please call letters on December 1, 2010, none of which were returned to the investigator. To date, neither § 87(2)(b), § 87(2)(b), nor § 87(2)(b) has contacted the investigator. Searches of the New York City Inmate Locator Services website indicated that they were not incarcerated at the time of the contact attempts.

On January 27, 2010, the investigator spoke with § 87(2)(b) who confirmed his contact information and scheduled an appointment for February 8, 2010. § 87(2)(b) however, missed his scheduled appointment without calling to cancel or reschedule. The investigator sent § 87(2)(b) a missed appointment letter and on February 11, 2010, § 87(2)(b) contacted the investigator and scheduled a second appointment for February 19, 2010. On February 19, 2010, § 87(2)(b)'s mother contacted the investigator and stated that § 87(2)(b) would not be able to appear for his scheduled appointment. Between February 19, 2010 and January 7, 2011, the investigator called § 87(2)(b) four more times and sent him two additional please call letters. On several occasions, the investigator left messages with § 87(2)(b)'s mother, on one occasion, the phone line was disconnected. To date, § 87(2)(b) has not contacted the investigator. A search of the New York City Inmate Locator Services website indicated that § 87(2)(b) has not been incarcerated.

On March 8, 2010, the investigator spoke with § 87(2)(b) who confirmed his contact information and scheduled an interview for March 19, 2010. § 87(2)(b) however, missed his scheduled interview without calling to cancel or reschedule. The investigator sent § 87(2)(b) a missed appointment letter and a please call letter. The investigator also called him twice, leaving voicemail messages on each occasion. To date, § 87(2)(b) has not contacted the investigator. A search of the New York City Inmate Locator Services website indicated that § 87(2)(b) has not been incarcerated.

Between January 27, 2010 and January 7, 2011, the investigator attempted to contact § 87(2)(b) five times via phone and sent him three please call letters. The investigator left voicemail messages for § 87(2)(b) and during the final call, the investigator spoke with a woman who

stated that she did not know § 87(2)(b) and the number that the investigator had been calling did not belong to § 87(2)(b). Searches of whitepages.com, the COLES directory, and LexisNexis failed to provide any additional contact information for § 87(2)(b). A search of the New York City Inmate Locator Services website indicated that § 87(2)(b) has not been incarcerated. To date, § 87(2)(b) has not contacted the investigator.

§ 87(2)(g)

§ 87(2)(g)

Team: 3

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date